



CHAPTER 71.

An Act to provide for the amalgamation of police forces in Scotland; to provide for the payment out of moneys provided by Parliament of grants towards police expenditure in Scotland; to amend the law relating to the provision of buildings and acquisition of land in Scotland for police purposes; and for purposes connected with the matters aforesaid.

[6th November 1946.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Amalgamation of Police Forces.

1.—(1) If it appears to the police authorities for any two or more police areas that it is expedient that those areas should be amalgamated for police purposes, they may for that purpose submit to the Secretary of State a scheme (hereinafter referred to as an "amalgamation scheme") and the Secretary of State may by order approve any scheme so submitted to him.

(2) Subject to the provisions of this Act, an amalgamation scheme shall make provision with regard to the following matters :—

- (a) the establishment of a combined police force for the combined area, the appointment of a chief constable of that force, and the transfer to that force of members of the constituent forces ;
- (b) the constitution for the administration and maintenance of that force of a joint police committee consisting of such number of persons, being members of the constituent authorities, as may be specified in the scheme ;

- (c) the delegation to the joint police committee of the whole functions relating to police of the constituent authorities (except the power to levy a rate and such other function as may be specified in the scheme) ;
- (d) the payment by the constituent authorities in such proportions as may be specified in the scheme of the expenditure incurred in the administration and maintenance of the combined force ;
- (e) the audit of the accounts of the joint police committee by an auditor appointed by the Secretary of State and the application to such audit of the provisions of the Third Schedule to the Local Government (Scotland) Act, 1929 ;

19 & 20 Geo. 5.
c. 25.

(3) Subject to the provisions of this Act, an amalgamation scheme may make provision with regard to all or any of the following matters :—

- (a) the transfer of property, rights and liabilities ;
- (b) the adjustment of liabilities between the constituent authorities ;
- (c) the settlement of differences between the constituent authorities ;
- (d) the transfer to the joint police committee of officers of any of the constituent authorities ;
- (e) the furnishing, on such terms and conditions as may be specified in the scheme, by one of the constituent authorities of any service connected with the administration and maintenance of the combined force ;
- (f) any other matters incidental to or consequential on the provisions contained in the scheme.

(4) The expenses incurred by a constituent authority for the purpose of the payment of the expenditure incurred in the administration and maintenance of the combined force shall be defrayed in like manner as expenses of that authority for the purposes of their functions relating to police would have required to be defrayed if the amalgamation scheme had not been made.

(5) The Secretary of State may, after consultation with the police authorities concerned, by order provide for the incorporation of a joint police committee with perpetual succession and a common seal and for conferring on such a committee power to hold land, or to borrow money.

(6) The enactments relating to county police shall apply to the combined area constituted by an amalgamation scheme applying to counties only, and the enactments relating to burgh police shall apply to a combined area constituted by an amalgamation scheme applying to burghs only, and a scheme applying to counties and to burghs shall contain provision for the application to the combined area constituted thereby either of the enactments relating to county police or of the enactments relating to burgh police.

(7) An amalgamation scheme constituting a combined area to which the enactments relating to county police apply is hereinafter referred to as a "county scheme" and an amalgamation scheme constituting a combined area to which the enactments relating to burgh police apply is hereinafter referred to as a "burgh scheme".

(8) For the purposes of the Local Government Superannuation 1 Edw. 8 & 1 Geo. 6. c. 69. (Scotland) Act, 1937, the appropriate superannuation fund in relation to the contributory employees of a joint police committee shall be the superannuation fund of such one of the constituent authorities as may be determined by or under the amalgamation scheme.

(9) The provisions of the First Schedule to this Act shall have effect for the purpose of adapting the enactments relating to police in their application to a combined area.

2.—(1) Subject to the provisions of this section, if it appears to the Secretary of State that the expediency in the interests of efficiency of making an amalgamation scheme for any police areas should be considered and no scheme satisfactory to him has been submitted to him by the police authorities for those areas under section one of this Act before such date as he may fix, the Secretary of State may in accordance with the subsequent provisions of this section by order make such scheme as he considers expedient, and the provisions of section one of this Act shall apply in relation to any such scheme as they apply in relation to schemes made under that section. Power of Secretary of State to make amalgamation schemes.

(2) Before making a scheme under this section the Secretary of State shall give to the police authorities concerned notice of the general nature of the proposed scheme; and unless those authorities give notice to the Secretary of State that they assent thereto, the Secretary of State shall publish in one or more newspapers circulating in the areas of the authorities a notice of the general nature of the proposed scheme and shall cause a local inquiry to be held by a person appointed by him (not being an officer of police or of any government department), and the provisions of the Second Schedule to this Act shall have effect with regard to any such inquiry.

(3) The Secretary of State shall lay before each House of Parliament, a draft of any scheme proposed to be made by him under this section, and, where a local inquiry has been held under this section with respect thereto, shall lay together with the draft a copy of the report of the person by whom the inquiry was held; and if either House within the period of forty days beginning with the day on which the draft scheme is laid before it resolves that the scheme be not made, no further proceedings shall be taken thereon, but without prejudice to the laying before Parliament of a new draft scheme.

In reckoning any such period of forty days, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

Transitory
provisions,
etc.

3.—(1) The transitory provisions set out in the Third Schedule to this Act shall have effect in relation to any alteration of police areas effected by virtue of an amalgamation scheme.

(2) Where, immediately before the date on which an amalgamation scheme came into force, proceedings were pending by or against any authority with respect to any property, rights or liabilities which are transferred by virtue of the scheme, those proceedings may be carried on thereafter with the substitution, for that authority, of the authority to whom the property, rights or liabilities are so transferred.

Amendment
and revocation
of amalgama-
tion schemes.

4.—(1) An amalgamation scheme made under section one or section two of this Act may be amended or revoked by a subsequent scheme made under either of those sections and the foregoing provisions of this Act, including the provisions of the First, Second and Third Schedules to this Act, shall, so far as applicable, have effect in relation to any such amending or revoking scheme subject to any necessary modifications and to the following provisions of this section.

(2) Without prejudice to the generality of the provisions of subsection (1) of this section, provision may be made by any such subsequent scheme—

- (a) for the division of the combined area into any two or more police areas, being either counties or burghs or combined areas constituted by the subsequent scheme, or for the inclusion in the combined area of any other police area ;
- (b) for the dissolution and winding up of any joint police committee constituted under the original scheme, or for the reconstitution of any such committee ;
- (c) for the transfer or retransfer to such police forces as may be determined by the subsequent scheme of members of the combined force ;
- (d) for the transfer or retransfer to such authorities as may be determined by the subsequent scheme of any officers, property, rights or liabilities of the joint police committee ;
- (e) for any other matters incidental to or consequential on the provisions of the subsequent scheme.

Adaptation
of local Acts
relating to
police.

5.—(1)¹ Where, by any local Act in force with respect to an area which ceases to be a separate police area by virtue of an amalgamation scheme, provision is made for conferring or imposing special powers or duties on the police, the Secretary

of State may by order adapt the local Act so far as appears to him to be necessary or expedient for the purpose of the exercise or performance of those powers or duties by the police of the combined area :

Provided that nothing in this section or in any order made in accordance therewith, shall be construed as extending the area within which or the matters in relation to which any such powers or duties as aforesaid are authorised or required by the local Act to be exercised or performed.

(2) Any order made by the Secretary of State under this section shall be laid before Parliament immediately after it is made ; and if either House of Parliament, within the period of forty days beginning with the day on which any such order as aforesaid is laid before it, resolves that the order be annulled, it shall thereupon become void, but without prejudice to the validity of anything previously done thereunder or to the making of a new order.

In reckoning any such period of forty days as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

(3) The power of the Secretary of State to make orders under this section shall include power to revoke or amend any such order by a subsequent order.

6.—(1) If in consequence of an amalgamation scheme or of anything done thereunder, any person who, immediately before the date when the scheme came into force, was an officer employed by a constituent authority or by a joint police committee, suffers direct pecuniary loss by reason of the determination of his appointment or the diminution of his emoluments, he shall, unless provision for his compensation for that loss is made by or under any other enactment for the time being in force, be entitled to receive compensation under this section from such constituent authority or joint police committee as may be determined by or under that scheme.

Compensation
of officers
prejudicially
affected.

(2) Any person who, immediately before the date on which an amalgamation scheme came into force, was an officer employed by a constituent authority or by a joint police committee and who, at any time within five years after the said date,

(a) has his services dispensed with or his emoluments reduced, otherwise than on the ground of misconduct; or

(b) relinquishes office by reason of his having been required to perform duties which are not analogous or which are an unreasonable addition to those which he was required to perform immediately before that date,

shall, for the purposes of this section, be deemed, unless the contrary is shown, to have suffered direct pecuniary loss by

reason of the determination of his appointment or the diminution of his emoluments in consequence of the scheme.

16 & 17 Geo. 5.
c. 47. (3) For the purposes of the determination and payment of compensation under this section, the provisions of the Second Schedule to the Rating (Scotland) Act, 1926, and of paragraph (f) of subsection (1) of section seven of the Local Government (Scotland) Act, 1929, shall be incorporated with this section subject to such modifications as the Secretary of State may by order prescribe for the purpose of adapting those provisions to claims under this section.

Chief
constables.

7.—(1) The chief constable of a police force shall not be transferred by an amalgamation scheme to the combined force constituted by the scheme unless he is appointed as the first chief constable of that force or unless before the date when the scheme comes into force he agrees to join that force in some other capacity.

(2) A chief constable who is not transferred as aforesaid shall be deemed to have retired from his police force immediately before the date when the scheme came into force and the following provisions of this subsection shall apply to him, that is to say :—

- 11 & 12 Geo. 5.
c. 31. (a) during the period of three months beginning with the said date (or, if within those three months he joins the combined force, during the period beginning with the said date and ending with the day before the date on which he joins that force) he shall be entitled to be paid by the joint police committee a salary and emoluments at the same rate as the salary and emoluments which he would have been entitled to receive had he continued to be the chief constable of his police force ;
- (b) if during the said three months he joins the combined force, he shall be deemed for the purposes of the Police Pensions Act, 1921, to have served in that force during the period for which he is in receipt of a salary under paragraph (a) of this subsection ;
- (c) if during the said three months he does not join the combined force, there shall, at the expiration of the said three months, be payable by the joint police committee to him or, in the event of his death, to his wife, children or other dependent relatives, such pension, gratuity or allowance, and on such terms, as may be prescribed by regulations made by the Secretary of State :

Provided that the amount of any pension, gratuity or allowance payable under paragraph (c) of this subsection shall, in a case where the former chief constable would have been entitled, with the consent of the police authority, to retire at the expiration

of the said three months without a medical certificate and receive an ordinary pension for life, be not less than it would have been if he had so retired, and the amount of any pension payable under that paragraph to the widow of a former chief constable shall not be reduced, in the event of his death, by reference to the number of complete years (if any) during which a pension was payable to him thereunder before he attained the age of sixty-five.

(3) Where a chief constable, in pursuance of an agreement in that behalf made by him before the date when an amalgamation scheme comes into force, is transferred to the combined force constituted by the scheme, in any capacity other than that of chief constable or assistant chief constable, or joins that force in any such capacity within the period of three months beginning with the said date, then, subject to any agreement to the contrary made between him and the joint police committee, he shall, while he serves in that force, be treated for the purposes of section one of the Police Pensions Act, 1921 (which prescribes the age of compulsory retirement) and of subsection (3) of section two of that Act (which restricts the right of chief constables to retire) as if he were a chief constable.

(4) The provisions of the Police Pensions Act, 1921, shall apply, subject to such exceptions and modifications as may be prescribed by regulations made by the Secretary of State, to any pension, gratuity or allowance payable under paragraph (c) of subsection (2) of this section.

8.—(1) Sections sixty-one, sixty-two and sixty-three of the Police (Scotland) Act, 1857 (which relate to the consolidation of burgh police forces with county police forces by agreement or by Order in Council) shall cease to have effect :

Consolidation
agreements
under Police
(Scotland) Act,
1857.
20 & 21 Vict.
c. 72.

Provided that any agreement made under the said section sixty-one (in this section referred to as a "consolidation agreement") which is in force at the commencement of this Act shall continue in force by virtue of this Act unless and until it is determined in accordance with the subsequent provisions of this section.

(2) For the purposes of the provisions of this Act relating to amalgamation of police forces, a burgh and a county the police establishments of which are consolidated under a consolidation agreement shall be deemed to be separate police areas and the councils of such burgh and county to be separate police authorities, and an amalgamation scheme applying to such burgh or county may determine the consolidation agreement as from such date as may be specified in the scheme, and may make provision for any purpose for which provision may be made by a scheme revoking an amalgamation scheme.

(3) Without prejudice to the provisions of the last foregoing subsection, the parties to a consolidation agreement may, by an agreement approved by the Secretary of State, determine the consolidation agreement as from such date as may be specified in the agreement under this subsection, and any such agreement may make provision for any purpose for which provision may be made by a scheme revoking an amalgamation scheme.

(4) Where a consolidation agreement is determined under this section, the provisions of the Third Schedule to this Act shall apply in relation to the areas previously subject to the agreement, and to the police forces of those areas, as they apply in relation to the areas subject to an amalgamation scheme which is revoked by a subsequent scheme, and to the police forces of those areas; and the scheme or agreement determining the consolidation agreement may provide for the making of such adjustments in relation to the respective property, rights and liabilities of the parties to the consolidation agreement as may be desirable in consequence of the determination thereof.

Provisions as
to constables
serving in the
forces or on
overseas police
service.
2 & 3 Geo. 6.
c. 103.

9.—(1) In relation to a person who had ceased to serve as a constable in a transferred force in order to serve in His Majesty's forces and to whom section one of the Police and Firemen (War Service) Act, 1939, applies at the date when the amalgamation scheme comes into force, the provisions of that Act shall have effect in relation to any period after the said date as if for any reference therein to the police force in which he was serving immediately before he ceased to serve as a constable there were substituted a reference to the new force, and references in that Act to the appropriate authority shall be construed accordingly.

(2) In relation to a person who has engaged in accordance with the provisions of section two of the Police (Overseas Service) Act, 1945, for a period of overseas service, and who, before he so engaged, was either—

- (a) a member of a transferred force; or
- (b) a person to whom section one of the Police and Firemen (War Service) Act, 1939, applied, having ceased to serve as a constable in a transferred force in order to serve in His Majesty's forces,

the provisions of the said section two shall, if he so engaged before the date when the amalgamation scheme came into force, have effect, in relation to any period after that date, as if for any reference therein to his home police force there were substituted a reference to the new force, and references in that section to the appropriate authority shall be construed accordingly.

(3) Nothing in the last foregoing subsection shall be construed as entitling a person who has engaged for a period of overseas service to revert to the new force as the chief constable of that

force ; but where any person who, immediately before he so engaged, was the chief constable of a transferred force would, but for this provision be so entitled to revert to the new force, then—

- (a) if he does not join that force in some capacity other than that of chief constable at the end of his period of overseas service in pursuance of an agreement in that behalf made by him during that period, subsection (2) of section seven of this Act shall apply to him as if for any reference therein to the date when the amalgamation scheme came into force there were substituted a reference to the end of his period of overseas service ; and
- (b) if he joins that force at the end of his period of overseas service or within the period of three months thereafter, subsection (3) of that section shall apply to him as it applies to a chief constable who is transferred to or joins a combined force as provided in that subsection.

(4) In this section the expressions “transferred force” and “new force” have respectively the same meanings as they have for the purpose of the Third Schedule to this Act, and the expression “overseas service” has the same meaning as it has for the purposes of the Police (Overseas Service) Act, 1945.

Exchequer Grants towards Police Expenses.

10.—(1) There shall be paid out of moneys provided by Exchequer Parliament towards the expenses of police authorities or joint grants towards police committees such sums, at such times, in such manner ^{police} expenses. and subject to such conditions as the Secretary of State may with the approval of the Treasury by order determine.

(2) Any order made by the Secretary of State under this section shall be laid before Parliament immediately after it is made ; and if either House of Parliament, within the period of forty days beginning with the day on which any such order as aforesaid is laid before it, resolves that the order be annulled, it shall thereupon become void, but without prejudice to the validity of anything previously done thereunder or to the making of a new order.

In reckoning any such period of forty days as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both houses are adjourned for more than four days.

Provision of Buildings and Acquisition of Land for Police Purposes

Provision of
buildings and
acquisition of
land for police
purposes by
county and
town councils,
and joint
police commit-
tees.

11.—(1) A police authority and a joint police committee which has power to hold land by virtue of an order made under subsection (5) of section one of this Act shall, for the purposes of their powers and duties, have power, with the consent of the Secretary of State, to provide, erect, alter, enlarge, hold and maintain, such buildings or other structures as may be required for the transaction of their business, or for police purposes including cells for the temporary confinement of persons taken into police custody, and dwelling houses or other housing accommodation for police officers.

(2) A police authority or such a joint police committee as aforesaid may, with the consent of the Secretary of State, purchase by agreement, or take on lease, or may be authorised by the Secretary of State to purchase compulsorily, any land whether within or without their area which is required for the purposes of the power conferred by subsection (1) of this section.

9 & 10 Geo. 6.
c. 49.

(3) For the purposes of the Acquisition of Land (Authorisation Procedure) Act, 1946, the last foregoing subsection shall be deemed to have been in force immediately before the commencement of that Act:

Provided that section two of that Act (which confers temporary powers for speedy acquisition of land in urgent cases) shall not apply to any compulsory purchase of land under this section.

(4) A police authority or a joint police committee which has power to hold land and to borrow money by virtue of an order made under subsection (5) of section one of this Act may from time to time borrow such sums as may be required for the purposes of their powers under this section, and section twenty-three of the Local Government (Scotland) Act, 1929, shall, subject, in the case of such a joint police committee as aforesaid, to any necessary modifications, apply to the power hereby conferred.

8 & 9 Geo. 6.
c. 18.

(5) A joint police committee which has power to borrow money by virtue of an order made under subsection (5) of section one of this Act shall, for the purposes of the Local Authorities Loans Act, 1945, be deemed to be a local authority.

(6) Expenditure incurred by a police authority under this section for any purpose shall be defrayed in like manner as expenditure for such a purpose would have required to be defrayed if this Act had not been passed.

(7) A police authority and a joint police committee which has power to hold land by virtue of an order made under subsection (5) of section one of this Act may, with the consent of the Secretary of State, sell or otherwise dispose of any land vested in them and no longer required by them.

Supplemental.

91

12.—(1) In this Act, except where the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say :—

*Interpretation,
etc.*

- “ Amalgamation scheme ”, “ burgh scheme ” and “ county scheme ” have the meanings assigned thereto by section one of this Act ;
- “ Combined area ” means the combined police area constituted by an amalgamation scheme ;
- “ Combined force ” means the combined police force established by an amalgamation scheme ;
- “ Constituent authority ” and “ constituent force ” mean respectively the police authority and the police force for an area which is combined by an amalgamation scheme ;
- “ County ” means a county inclusive of any burgh situate therein which does not maintain a separate police force ;
- “ Enactment ” includes an order, regulation or other instrument having effect by virtue of an Act ;
- “ Enactments relating to county police ” and “ enactments relating to burgh police ” mean enactments relating to the administration and maintenance of county and burgh police forces respectively ;
- “ Officer ” includes a servant ;
- “ Police authority ” means—
 - (i) in relation to a burgh which maintains a separate police force, the town council ;
 - (ii) in relation to counties combined for the purposes mentioned in subsection (7) of section ten of the Local Government (Scotland) Act, 1929, the joint county council ; and
 - (iii) in relation to any other county, the county council.

(2) References in this Act to any enactment shall be construed as references to that enactment as amended by any subsequent enactment.

(3) Where an amalgamation scheme is to come into force on a date subsequent to that on which it is approved or made, any appointment to be made, direction to be given or other thing to be done for the purposes of the scheme may be made, given or done at any time after the approval or making of the scheme so far as may be necessary for the purpose of bringing the scheme into force on the first mentioned date.

13.—(1) This Act, except in so far as it amends section eleven of the Police (Scotland) Act, 1857, shall extend to Scotland only.

*Extent,
short title,
and repeals.*

(2) This Act may be cited as the Police (Scotland) Act, 1946.

(3) The enactments specified in the Fourth Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Schedule.

SCHEDULES.

Section 1.

FIRST SCHEDULE.**ADAPTATION OF ENACTMENTS WITH RESPECT TO AMALGAMATION
SCHEMES.**

1. Subject to the provisions of this Schedule, any reference in any enactment to a police area or police district shall be construed as including a reference to a combined area, and any reference in any enactment to a police force shall be construed as including a reference to a combined force, and, in relation to a combined area or combined force any reference in any enactment to the chief constable or to the chief officer of police shall be construed as a reference to the chief constable of the combined force.

2.—(1) Any enactment relating to county police (including special constables) shall in its application to the combined area constituted by a county scheme have effect as if for references to any term mentioned in the first column of the following Table there were substituted references to the term set out opposite to that term in the second column of that Table :—

TABLE.

Chief constable of the county ...	Chief constable of the combined force.
Police committee	Joint police committee.
Justice of the peace for the county	Justice of the peace having jurisdiction in any part of the combined area.
General or quarter sessions ...	Meeting convened for the purpose of functions relating to the combined force.

(2) Any enactment relating to burgh police (including special constables) shall in its application to the combined area constituted by a burgh scheme have effect as if for references to the chief constable of the burgh there were substituted references to the chief constable of the combined force.

55 & 56 Vict.
c. 55.

3. References in section eleven of the Police (Scotland) Act, 1857, or in section eighty of the Burgh Police (Scotland) Act, 1892, or in any similar provision in a local Act, to a county and a burgh shall include respectively references to the combined area constituted by a county scheme and the combined area constituted by a burgh scheme.

4. Special constables shall not be appointed under section ninety-six of the Burgh Police (Scotland) Act, 1892, or under any local Act, or

under the Special Constables (Scotland) Act, 1914, for any burgh or county comprised in a combined area and any appointment of a special constable under those Acts as amended by this Act shall be made for the whole of the combined area.

1ST SCH
—cont.

5. Section eleven of the Police (Scotland) Act, 1857, shall have effect as if references therein to the border counties of Berwick, Roxburgh, and Dumfries included references to a combined area comprising any one of those counties. 4 & 5 Geo. 5.
c. 53.

6. The power conferred by subsection (1) of section thirteen of the Police Act, 1919, on the Secretary of State to prescribe modifications of the Schedule to that Act in its application to Scotland shall include power to prescribe such modifications as may be necessary by reason of any amalgamation of police forces in pursuance of this Act.

7. An application under subsection (1) of section seventeen of the Police Pensions Act, 1921, as applied to Scotland by paragraph (c) of subsection (1) of section thirty-four of that Act, by a person aggrieved by a decision of a joint police committee may be made to any sheriff having jurisdiction in any part of the combined area where such person last served as a member of a police force.

8. The reference in subsection (1) of section seventy-five of the Local Government (Scotland) Act, 1889, to an Act of Parliament shall include a reference to an amalgamation scheme. 52 & 53 Vict.
c. 50.

9. The sheriff by whom any inquiry and report in pursuance of section two of the Police (Appeals) Act, 1927, is to be made shall in the case of a combined area which is situated in two or more sheriffdoms be the sheriff of such one of those sheriffdoms as the Secretary of State may appoint. 17 & 18 Geo. 5.
c. 19.

SECOND SCHEDULE.

Section 2.

PROVISIONS AS TO INQUIRIES.

1. The Secretary of State shall appoint a person to hold the inquiry and to report thereon to him.

2. The person appointed to hold that inquiry shall notify the police authorities concerned and any other person appearing to him to be interested of the time when and the place where the inquiry is to be held.

3. The person appointed to hold the inquiry may, by notice in writing, require any person—

- (a) to attend at the time and place set forth in the notice to give evidence or to produce any books or documents in his custody or under his control which relate to any matter in question at the inquiry; or
- (b) to furnish within such reasonable period as is specified in the notice such information relating to any such matter as aforesaid as the person appointed to hold the inquiry may think fit and as the person so required is able to furnish:

2ND SCH.
—*cont.*

Provided that—

- (i) no person shall be required in obedience to such a notice to attend at any place which is more than ten miles from the place where he resides unless the necessary expenses are paid or tendered to him ; and
- (ii) nothing in this paragraph shall empower the person appointed to hold the inquiry to require any person to produce any book or document or to answer any question which he would be entitled on the ground of privilege or confidentiality to refuse to produce or to answer if the inquiry were a proceeding in a court of law.

4. The person appointed to hold the inquiry may administer oaths and examine witnesses on oath and may accept, in lieu of evidence on oath by any person, a statement in writing by that person supported by a declaration of the truth thereof in such form as the person appointed to hold the inquiry may require.

5. The inquiry shall be held in public.

6. Any person who refuses or wilfully neglects to attend in obedience to a notice issued under paragraph 3 of this Schedule, or who wilfully alters, suppresses, conceals, destroys, or refuses to produce any book or document which he may be required to produce by any such notice, or who refuses or wilfully neglects to comply with any requirement under the said paragraph 3 of the person appointed to hold the inquiry, shall be liable on summary conviction to a fine not exceeding twenty pounds or to imprisonment for a period not exceeding three months.

7. The Secretary of State may make orders as to the expenses incurred by the parties appearing at the inquiry and as to the parties by whom such expenses shall be paid.

8. An order by the Secretary of State under paragraph 7 of this Schedule requiring any party to pay expenses may be enforced in like manner as a recorded decree arbitral.

Section 3.

THIRD SCHEDULE.

TRANSITORY PROVISIONS.

1. All members of a police force who are transferred by an amalgamation scheme shall be deemed to have been duly appointed as members of the new force under the Police (Scotland) Act, 1857, or under section seventy-eight of the Burgh Police (Scotland) Act, 1892, or any similar provision in a local Act, as the case may be, and to have been duly attested as such, and shall hold in that force the same ranks respectively as they held immediately before the date of such transfer in the transferred force.

3RD SCH.
—cont.

2. Any person appointed before the date when an amalgamation scheme comes into force to be a special constable for an area forming part of a new area shall, if serving as such immediately before that date, be deemed to have been appointed a special constable for the new area under the Special Constables (Scotland) Act, 1914, or under section ninety-six of the Burgh Police (Scotland) Act, 1892, or any similar provision in a local Act, as the case may be, and to have been duly attested as such.

3. For the purposes of the Police Pensions Act, 1921, any member of a constituent force who is transferred by an amalgamation scheme shall be entitled to reckon as approved service in the new force any approved service which he was entitled to reckon under that Act immediately before the date when the scheme came into force and any pension, allowance or gratuity granted under that Act before that date to a member of a constituent force or to his widow, children or dependent relatives shall be treated after that date as if it had been granted by the joint police committee for the new area, and shall be payable by that committee accordingly.

4.—(1) Any regulations made under section twenty-three of the Police Pensions Act, 1921, by the police authority for an area which ceases to be a separate police area by virtue of an amalgamation scheme shall cease to have effect on the date when the scheme comes into force, but without prejudice to the power of the joint police committee for the new area to make new regulations thereunder.

(2) Subsection (2) of section thirty-eight of the Interpretation Act, 1889, shall apply in relation to any regulations which cease to have effect as aforesaid, as if the regulations were an enactment and had been repealed by Act of Parliament. ^{52 & 53 Vict. c. 63.}

5. Where immediately before the date when an amalgamation scheme comes into force a member of a transferred force is entitled to appeal to a Secretary of State under the Police (Appeals) Act, 1927, or where any such member has appealed to a Secretary of State under that Act before the said date but the appeal has not been determined, the disciplinary authority for the new area shall be the respondent for the purposes of the appeal, and in the case of a pending appeal, shall be substituted as respondent for the disciplinary authority for the transferred force.

6. Any register kept in pursuance of any enactment by the chief constable of an area which ceases to be a separate police area by virtue of an amalgamation scheme shall be transferred by him to the chief constable of the new area as soon as may be after the date when the scheme came into force, and as from that date shall be deemed to form part of the corresponding register kept by that chief constable.

7. Subject to the foregoing provisions of this Schedule, anything done before the date when an amalgamation scheme comes into force by, to or before the police authority for any area which ceases to be a separate police area by virtue of the scheme, or by, to or before the chief constable of any such area, shall, in so far as may be necessary for the purpose or in consequence of the provisions of this Act or of

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—cont.

the scheme, have effect after that date, as if it had been done by, to or before the joint police committee, or the chief constable of the combined force.

8. In this Schedule the expression "transferred force" means the police force of an area which ceases to be a separate police area by virtue of an amalgamation scheme or which is divided into two or more police areas by virtue of a scheme amending or revoking such a scheme; the expression "new force" means the police force to which members of a transferred force are transferred; and the expression "new area", in relation to an area to which an amalgamation scheme applies, means the combined area constituted by the scheme or, in the case of an amending or revoking scheme, such area as may be prescribed by that scheme.

Section 13.

FOURTH SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
20 & 21 Vict. c. 72.	The Police (Scotland) Act, 1857.	Sections fifty-five to fifty-seven, sixty-one, sixty-two, sixty-three, and sixty-six.
54 & 55 Vict. c. 55.	The Burgh Police (Scotland) Act, 1892.	In section seventy-eight, the proviso; section three hundred and fifteen so far as relating to police offices or houses for the accommodation of constables.
8 Edw. 7. c. 62.	The Local Government (Scotland) Act, 1908.	Sections three and five so far as relating to dwellings for constables.

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